

A midwestern housing authority — ACOP — HOTMA gap check, 2026-09-20

Source: (name withheld), 593 pages

EXAMPLE ONLY: produced from a public document (the authority's own website), not from a client's.

Present 14 · Missing 1 · Outdated 8 · Unclear 2 · Not addressed (optional) 2

Most consequential gaps: Asset limitation at annual and interim reexaminations (enforcement choice) (missing); Net family assets: non-necessary personal property threshold and imputed asset income (outdated); Interim reexamination whenever a household member is added or removed (April 2026, subtopic I.3) (outdated)

TO RESOLVE BY HAND BEFORE THIS LEAVES (unclear): Enterprise Income Verification use under HOTMA (interims; the New Hires report) (page 195 (printed 7-11)); A statement of when the HOTMA policies take effect (page 35 (printed 1-5))

CY2027 figures used: asset limitation \$109,797; asset threshold \$54,898; dependent deduction \$525; elderly disabled \$575; student income exclusion \$525; passbook rate 0.38%; medical threshold 10% (phased in at 5% then 7.5% for families on relief); enforcement date January 1, 2027

Policy item	Verdict	Page found	What was found	Where it goes	HUD source
Asset limitation for new admissions	PRESENT	page 76 (printed 3-19)	2 of 3 indicators found; current figure or rule confirmed — e.g. "which a family is ineligible for the program based on asset ownership. First, assistance may not be provided to any family if the family's n"		Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 25 (§A.6.a: written screening criteria denying admission over \$100,000 (adjusted) net assets and/or suitable real property); HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 1; HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 4
Geographic hardship parameters for owned real property	PRESENT	page 77 (printed 3-20)	1 of 3 indicators found — e.g. "family as being overcrowded based on the [the PHA]'s occupancy standards in Chapter 5. • Is geographically located so as to be a hardship fo"		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 1 (policies should indicate the general parameters for whether the location of owned real property is a geographic hardship); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 25
Asset limitation at annual and interim reexaminations (enforcement choice)	MISSING		no policy language found	page 1: "ADMISSIONS & CONTINUED OCCUPANCY POLICY"	Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 25 (§A.6.b: non-enforcement, enforcement, limited enforcement and/or exception policy must be set forth; and when termination proceedings begin); HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 2; HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 5
Net family assets: non-necessary personal property threshold and imputed asset income	OUTDATED	page 218 (printed 7-34); page 152 (printed 6-40); page 221 (printed 7-37) (outdated text)	\$5,000 imputed-income rule (replaced by the inflation-adjusted threshold, CY2027 \$54,898); hard-coded \$50,000 with no inflation adjustment (CY2027 is \$54,898) — found: "to, accept the family's self-certification that the family's assets do not exceed \$50,000 without taking any additional steps to verify the "	page 151 (printed 6-39): "6-II.D. DETERMINING INCOME FROM ASSETS"	Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 55 (Attachment F: determining net family assets; imputed returns only when net assets exceed the threshold); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 9; HUD User, 2027 HUD Inflation-Adjusted Values (effective 1 Jan 2027), page 1 (threshold \$54,898 for CY2027)

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HUD passbook savings rate for imputed asset income	PRESENT	page 114 (printed 6-2)	1 of 1 indicators found; current figure or rule confirmed — e.g. "who is under 18 years of age; and • Imputed returns of an asset based on the current passbook savings rate, as determined by HUD, when the v"		HUD User, 2027 HUD Inflation-Adjusted Values (effective 1 Jan 2027), page 3 (0.38% effective 1 Jan 2027; the PHA must use HUD's published rate); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 55
Self-certification of net family assets at or under the threshold	OUTDATED	page 218 (printed 7-34) (outdated text)	self-certification elected at a flat \$50,000; the CY2027 threshold is \$54,898, adjusted annually (24 CFR 5.603(b), 5.618(b)(1)) — found: "minimum of one statement that reflects the current balance of banking/financial accounts. PHA Policy For families with net assets totaling \$"	page 218 (printed 7-34): "7-III.F. ASSETS AND INCOME FROM ASSETS"	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 5 (must state whether self-certification is accepted at admission and at reexamination; full verification every three years); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 11; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 55 (Attachment F.7)
General hardship relief for health, medical, attendant care and auxiliary apparatus expenses	OUTDATED	page 25 (printed Def-9) (outdated text)	3% of annual income medical/disability threshold (HOTMA: 10%, phased in at 5% and 7.5%) — found: "allowances are given when calculating adjusted income for medical expenses in excess of 3 percent of annual income. Minimum rent. An amount "	page 168 (printed 6-56): "6-IV.B. FINANCIAL HARDSHIPS AFFECTING MINIMUM RENT [24 CFR 5.630]"	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 6 (must define what constitutes a hardship; must state whether 90-day extensions are allowed and any maximum); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 13; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 36 (Attachment C)
Phased-in hardship relief (5%, then 7.5%, then 10%) for families deducting before HOTMA	PRESENT	page 160 (printed 6-48)	3 of 3 indicators found — e.g. "to be employed. Families may be eligible for relief under one of two categories; phased-in relief or general relief, as defined below. Phase"		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 7 (24-month phase-in for families who received the deduction before compliance); Notice PIH 2026-15 (14 May 2026), page 12 (Appendix B field 8f: 5%, 7.5% or 10%); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 36
Hardship exemption to continue the child care expense deduction	PRESENT	page 164 (printed 6-52)	2 of 2 indicators found — e.g. "[the PHA] ACOP Effective 04/01/2025 Page 6-52 Child Care Expense Hardship Exemption [24 CFR 5.611(d) and Notice PIH 2023-27] A family whose "		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 8 (must define hardship including inability to pay rent; extensions policy); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 18; HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 20 (policy for determining the family's inability to pay rent)
Additional (permissive) deductions, if the PHA adopts any	NOT ADDRESSED		not adopted; only needed if the PHA chooses to adopt it	page 153 (printed 6-41): "PART III: ADJUSTED INCOME"	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 10 (a PHA that adopts permissive deductions must include written policies); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 21
Dependent deduction at the inflation-adjusted amount	OUTDATED	page 153 (printed 6-41); page 472 (outdated text)	\$480 base amount printed beside an adjustment clause (CY2027 amount is \$525); hard-coded \$480 dependent deduction, no adjustment clause (CY2027 is \$525) — found: "in the dwelling unit, after making the following deductions (a) Mandatory deductions (1) \$480 for each dependent (adjusted annually by HUD, "	page 153 (printed 6-41): "PART III: ADJUSTED INCOME"	HUD User, 2027 HUD Inflation-Adjusted Values (effective 1 Jan 2027), page 2 (\$525 for CY2027, 24 CFR 5.611(a)(1)); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 95 (Attachment H: inflationary adjustments); Notice PIH 2026-15 (14 May 2026), page 12 (Appendix B field 8r: the inflation-adjusted amount for the calendar year)

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Elderly or disabled family deduction at the inflation-adjusted amount	OUTDATED	page 154 (printed 6-42); page 57 (printed 2-15); page 472 (outdated text)	\$400 base amount printed beside an adjustment clause (CY2027 amount is \$575); hard-coded \$400 elderly/disabled deduction, no adjustment clause (CY2027 is \$575) — found: "adults, and live-in aides are never considered dependents [24 CFR 5.603(b)]. 6-III.C. ELDERLY OR DISABLED FAMILY DEDUCTION A single deductio"	page 226 (printed 7-42): "PART IV: VERIFYING MANDATORY DEDUCTIONS"	HUD User, 2027 HUD Inflation-Adjusted Values (effective 1 Jan 2027), page 2 (\$575 for CY2027, 24 CFR 5.611(a)(2)); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 95; Notice PIH 2026-15 (14 May 2026), page 12 (Appendix B field 8p)
Earned Income Disregard: no new enrollment since 1 January 2024	PRESENT	page 175 (printed 6-63); page 122 (printed 6-10); page 123 (printed 6-11) (outdated text)	current rule stated; leftover pre-HOTMA wording remains on page 175 (printed 6-63), page 122 (printed 6-10), page 123 (printed 6-11) -- worth tidying — found: "Because the EID is a function of income-based rents, a family paying flat rent cannot qualify for the EID even if a family member experience"		Notice PIH 2026-15 (14 May 2026), page 5 (Appendix A: ceasing enrollment into Earned Income Disregard, all PHAs, January 1, 2024)
De minimis income errors: how the PHA repays or credits an overcharged family	PRESENT	page 413 (printed 15-7)	1 of 1 indicators found — e.g. "family composition, income, assets, and expenses, and (2) errors in calculation. De Minimis Errors [24 CFR 5.609(c)(4); Notice PIH 2023-27] "		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 11 (must include how the family is repaid or credited, retroactive to the error, regardless of amount); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 23; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 26 (Attachment B)
Interim reexaminations for decreases in adjusted income: the percentage threshold	PRESENT	page 279 (printed 9-27)	2 of 2 indicators found — e.g. "hierarchy, staff confirmed Paul was no longer employed at Sasha's Sweets and decreased his anticipated annual income from \$28,000 to \$7,500 "		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 11 (must identify the threshold used (10% or lower); rounding policy optional); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 27; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 98 (Attachment I.1)
Interim reexaminations for increases: 10% rule, earned income excluded unless a prior interim decrease, last-three-months option	PRESENT	page 270 (printed 9-18)	3 of 3 indicators found — e.g. "04/01/2025 Page 9-18 Interim Increases [24 CFR 960.257(b)(3) and Notice PIH 2023-27] Increases Less than 10 Percent PHAs must not process in"		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 12 (must describe the last-three-months choice and the earned-income choice); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 29; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 98 (Attachment I.2)
Interim reexamination whenever a household member is added or removed (April 2026, subtopic I.3)	OUTDATED	page 268 (printed 9-16); page 269 (printed 9-17) (outdated text)	pre-April 2026 rule: an interim when a member leaves only if adjusted income decreases (Revision 3 subtopic I.3 requires an interim on any addition or removal) — found: "foster child, or foster adult) no longer lives in the unit. The PHA must process an interim for all decreases in adjusted income when a fami"	page 114 (printed 6-2): "6-I.B. HOUSEHOLD COMPOSITION AND INCOME"	Notice PIH 2026-09 / H 2026-05 (13 Apr 2026), page 2 (§III: interim required on any addition or removal of a household member, regardless of the income effect); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 102 (subtopic I.3, 0-percent threshold; the last-three-months written-policy exception)

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Reporting changes: what must be reported, how soon, and retroactive rent decreases	PRESENT	page 272 (printed 9-20)	3 of 4 indicators found — e.g. "change occurred during the last three months of the certification period. Families must report changes in income within 10 business days of "		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 12 (must describe which changes, the timeline for 'timely', and any retroactive-decrease policy); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 24; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 98
Consent form HUD-9886-A and the consequence of revoking consent	OUTDATED	page 185 (printed 7-1); page 72 (printed 3-15); page 186 (printed 7-2) (outdated text)	form HUD-9886 without the -A (HUD-9886-A required from 1 Feb 2025) — found: "to the family's eligibility and level of assistance. While PHAs must use form HUD-9886, this form does not release all the information neces"	page 71 (printed 3-14): "3-II.D. FAMILY CONSENT TO RELEASE OF INFORMATION [24 CFR 5.230]"	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 13 (may establish that revocation results in termination or denial; must explain consequences); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 32; Notice PIH 2026-15 (14 May 2026), page 5 (Appendix A: use of HUD-9886-A no later than February 1, 2025)
Safe harbor: whether income determinations from other means-tested programs are accepted	PRESENT	page 188 (printed 7-4)	1 of 1 indicators found — e.g. "accept this type of verification, the PHA must establish in policy when they will accept Safe Harbor income determinations and from which pr"		HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 15 (must state whether accepted, when, from which programs, and how conflicts are handled); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 36; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 112 (Attachment J.4)
Enterprise Income Verification use under HOTMA (interims; the New Hires report)	UNCLEAR	page 195 (printed 7-11)	the topic is addressed but the current HOTMA figure or rule was not found next to it -- read the page — e.g. "[the PHA] ACOP Effective 04/01/2025 Page 7-11 The EIV Income Report may be used to verify and calculate income at annual reexamination if th"	page 194 (printed 7-10): "7-I.E. LEVEL 5 AND 6 VERIFICATION: UP-FRONT INCOME VERIFICATION (UIV)"	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 17 (EIV policies updated for discretionary use; New Hires report at least quarterly when earned-income increases count); HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 34; Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 112
Foster adults, foster children and live-in aides treated as household members (definitions)	PRESENT	page 60 (printed 3-3)	2 of 2 indicators found — e.g. "permission, live in a public housing unit, such as live-in aides, foster children, and foster adults. 3-I.C. FAMILY BREAK-UP AND REMAINING M"		Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 52 (Attachment E); Notice PIH 2026-09 / H 2026-05 (13 Apr 2026), page 2
Earned income of dependent full-time students excluded above the adjusted amount	OUTDATED	page 158 (printed 6-46) (outdated text)	\$480 student earned-income exclusion (CY2027 is \$525, adjusted annually) — found: "to work is a person who receives the earned income disallowance (EID) or a full-time student whose earned income above \$480 is excluded, chi"	page 114 (printed 6-2): "PART I: ANNUAL INCOME"	HUD User, 2027 HUD Inflation-Adjusted Values (effective 1 Jan 2027), page 2 (\$525 for CY2027, 24 CFR 5.609(b)(14)); Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 75 (Attachment G)
Zero-income family review schedule	PRESENT	page 195 (printed 7-11)	1 of 1 indicators found — e.g. "as necessary. For example, EIV may be used to verify that families claiming zero income are not receiving income from any sources listed in "		HUD Exchange, Sample Admin and ACOP HOTMA Policies, page 39
A statement of when the HOTMA policies take effect	UNCLEAR	page 35 (printed 1-5)	only 1 of 2 indicators found -- may be worded differently, or only partly adopted; read the page — e.g. "incentives. On July 29, 2016, the Housing Opportunity Through Modernization Act of 2016 (HOTMA) was signed into law. HOTMA made numerous cha"	page 35 (printed 1-5): "1-II.A. OVERVIEW AND HISTORY OF THE PROGRAM"	Notice PIH 2026-15 (14 May 2026), page 2 (every HUD-50058 effective on or after January 1, 2027 must reflect HOTMA; policies in use from September 2026 for early-start reexaminations)

DRAFT for review

Policy item	Verdict	Page found	What was found	Where it goes	HUD source
Family Self-Sufficiency participants follow the HOTMA interim rules (FSS programs only)	NOT ADDRESSED		not adopted; only needed if the PHA chooses to adopt it	page 27 (printed Def-11): "participate in an economic self-sufficiency program."	HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 18 (FSS families are subject to all HOTMA interim reexamination regulations; a PHA may not run interims below the 10% threshold for FSS participants); HUD, List of Discretionary Policies to Implement HOTMA (PH and HCV, 3/14/2024), page 19
Streamlined income determination for fixed-income families	PRESENT	page 192 (printed 7-8)	2 of 2 indicators found — e.g. "program to determine the family's annual income as outlined above, then PHA will use a streamlined income determinations where applicable. I"		Notice PIH 2023-27 / H 2023-10, Revision 3 (16 Apr 2026), page 109 (Attachment I, subtopic I.8: HOTMA did not change streamlined income determinations; a COLA must be applied to each fixed source)

What this checks: whether the policy language and figures HUD's HOTMA documents call for appear in this document, and where. What it does not check: tenant files, rent calculations, software, forms, or anything outside this document. It is not legal advice and not a determination of any kind. Method: deterministic keyword and number matching over the document's text, page by page; no reading by a lawyer and no model. Page numbers are the file's page index (1 = first page of the file), which can differ from the number printed on the page.

If you would like the changes made, a rewrite of one document is \$1,500 (both documents \$2,500), and the \$500 for this check comes off it.